SynD
Synthetic Data
Community of Practice

SynD Template Data Sharing Agreement

V1.1





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SynD Template Data Sharing Agreement

INSTRUCTIONS FOR USING THIS DOCUMENT

About this document

This template Data Sharing Agreement (**Agreement**) has been prepared for use by members or collaborators of the Synthetic Data Community of Practice (**SynD**) when undertaking projects involving the sharing of synthetic health data. Note - generation of synthetic data (using real data) would be handled under existing agreements and processes—not this new template. This Agreement is intended to be used in conjunction with the SynD Synthetic Health Data Governance Framework (**Framework**).

This Agreement has been prepared for use by two parties, and can be used for projects involving data sharing by one or both parties. The Agreement can also be used as a base for projects involving data sharing between more than two parties (e.g. where data is shared between a group of entities), but will require further amendment to do so (including the addition of special conditions to address responsibilities for the management of data sharing among the group of entities, and amending drafting that refers to singular parties (e.g. "Party A / Party B") to be suitable for the relevant group of entities).

How to use this document

This Agreement is comprised of the following parts:

- **Part A – Project Details**

  Part A must be updated with details about the synthetic health data sharing project. Template drafting and guidance notes have been included to assist with preparing these updates.

  The execution page is included at the end of Part A. The parties will sign the execution page to enter the Agreement.

  An optional Data Use Agreement for End Users is attached to Part A, which the parties can use to notify end users of their responsibilities and obligations when accessing and using synthetic health datasets, and to obtain written commitments from end users with respect to the proper handling of the relevant dataset.

- **Part B – General Terms**

  Part B provides a base set of standard terms that are intended to apply to all synthetic health data sharing projects contemplated by the Framework.

  If departures to the General Terms are required for a particular project, these should be made by adding special conditions to Part A. Alternatively, the parties can directly amend the relevant terms in Part B (if that approach is preferred), but care should be taken to maintain the cross-references to the relevant details in Part A.

Drafting notes should be removed from the final version of this Agreement prior to execution.

Questions about this template

Please direct any questions about this template to SynD@dhcrc.com

DISCLAIMER

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By using this template, you acknowledge and agree to this disclaimer.

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[Logo of SynD / member or collaborator of SynD using this template]

[Delete this page from the execution version of the Agreement]

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[Logo of SynD / member or collaborator of SynD using this template]

Data Sharing Agreement

[Insert project name]

[Insert entity, including ABN (if applicable)]
([**Party A**])

and

[Insert entity, including ABN (if applicable)]
([**Party B**])

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PART A: PROJECT DETAILS

INSTRUCTIONS TO COMPLETE PART A: PROJECT DETAILS

Update Part A (Project Details) to reflect each party's details and responsibilities for the data sharing project.

The General Terms (Part B) require the parties to carry out the project in accordance with these Project Details. To the extent of any inconsistency between these Project Details and the General Terms, these Project Details will take precedence.

If additional documents are relevant for the project (e.g. a detailed service description for Additional Services), these should be annexed to these Project Details or incorporated by reference. Unless otherwise specified, the terms in those documents will take precedence over the General Terms.

1. Parties

[This template uses the terms "Party A" and "Party B" as placeholder names for the parties. Replace all references to "Party A" and "Party B" throughout this document with appropriate names for each party.]

[Party A]	Name	[Insert full entity name]
	[ABN / ACN]	[Insert]
	Address	[Insert]
	Email	[Insert]
	Attention	[Insert contact person / representative]
[Party B]	Name	[Insert full entity name]
	[ABN / ACN]	[Insert]
	Address	[Insert]
	Email	[Insert]
	Attention	[Insert contact person / representative]

2. Background

[Insert a short summary of the project for reference purposes. Example drafting for a one-way data sharing / data usage arrangement is set out below. This background section should be updated from a two-way data sharing and usage arrangement. Note - not all synthetic datasets present the same disclosure or inferential risk. Introducing tiered categories would allow proportional security and governance controls].

(a) [Party A has developed a synthetic health dataset, which includes synthetic health data relevant to the study of [insert]].

(b) [Party B is a research organisation engaged in the study of [insert]].

(c) [The parties have agreed to collaborate on a project to enable Party B to use the synthetic health dataset for the purpose of [insert]].

3. Term

Clause 2, General Terms

3.1 Commencement Date

[Insert specified date on which this Agreement will commence, or "The date the last party signs this Agreement."]

3.2 End Date

[Insert fixed end date, e.g. "30 June 2027", or period, e.g. "12 months from Commencement Date"]

3.3 Extension Mechanism

[Insert mechanism for the Agreement to extend upon termination, e.g. "Automatic renewal for successive 6-month periods unless either party gives 60 days' written notice of non-renewal prior to the end of the current Term" or "By mutual written agreement only".]

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4. Data

Clauses 3.2 and 4, General Terms

[To complete this section, insert a detailed description of the dataset(s) to be shared and agreed arrangements for the handling of the data. If only one party will share data, insert "Not applicable" where appropriate. The below headings have been added to address the minimum details required for the General Terms. Additional headings can be added as relevant to the project. The agreement could reference version control of the synthetic dataset, documentation of the synthesis methodology, the date of generation, the risk assessment technique applied, and known analytical limitations. This is especially important where synthetic data may be used for modelling, performance evaluation, or algorithm testing, as reproducibility and methodological transparency become critical governance considerations.]

4.1 Data provided by Party A

[Complete the below details if Party A will provide data to Party B. Add any additional headings / description of the data as relevant to the circumstances. If Party A will not provide data to Party B, insert "N/A" and delete the below headings.]

(a) **Scope of Data**

[Describe the data to be provided by Part A, including the scope and volume of data.]

(b) **[Transfer / access] details**

(i) **[Transfer / access] method:** [e.g. secure file transfer protocol (SFTP), API, encrypted USB, cloud platform with access controls.]

(ii) **Encryption:** [Specify encryption standard for data in transit.]

(iii) **Delivery timing:** [e.g. "One-off transfer within 14 days of Commencement Date", "Monthly batch uploads by the 5th of each month", "Real-time API access".]

(c) **Access Period**

[Insert period during which Party B may access the data, if different to the Term of this Agreement).

(d) **Permitted Purpose for use of Data by Party B**

[Insert the permitted purpose for which Party B may use the data. Consider whether all usage limitations in clause 4 of the General Terms are applicable, or if Party B is permitted to engage in any conduct that would otherwise be prohibited under that clause (e.g. linkage with other data held by Party B to enable re-identification of individuals, or other modification, analysis, synthesis, reformulation, decomposition, deconstruction, disassembly or reverse engineering of the Data). Clarifying ownership and licensing of trained models and derivative materials is recommended e.g. whether models trained on synthetic data may later be fine-tuned on real-world datasets, whether derivative synthetic datasets may be created, or whether commercial exploitation is permitted.]

(e) **Data arrangements on expiry or termination (including for Personal Information)**

[Under the General Terms, unless otherwise specified, a party must, upon receipt of a written request by the other party following the expiry or termination of this Agreement, promptly (and as directed by the other party), delete the data or provide the data back to the party that originally shared the data. If different arrangements apply (e.g. the party may retain a copy of the data), specify these arrangements here.]

(f) **End User Terms**

[The parties may agree that Party B's End Users are required to sign a data use agreement before they are granted access to the Data. The data use agreement can also be used to notify End Users of their responsibilities and obligations when accessing and using synthetic health datasets. Specify here whether End Users are required to sign a data use agreement, and the form of this agreement (this should be attached to this Part A or incorporated by reference). A template data use agreement is attached to this Part A.].

[Yes, End Users are required to sign the [Data Use Agreement for End Users of Party B – Deed Poll attached as Annexure A / insert other relevant terms] prior to accessing the Data] OR [N/A].]

(g) **Pre-approved disclosure**

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[Under clause 4.3 of the General Terms, the Data Requestor must not disclose or otherwise make available any part of the Data or any outputs derived from it to any third party (including any subcontractor) without the prior written authorisation of the Data Provider, unless required by Law.

Identify any pre-approved third parties to whom the Data Requestor may disclose the Data, and whether those third parties may use the Data for all Permitted Purposes or a narrower purpose.]

(h) **Pre-approved publication**

[Under clause 4.3 of the General Terms, the Data Requestor must not publish or otherwise make available any part of the Data or any outputs derived from it to any third party (including any subcontractor) without the prior written authorisation of the Data Provider, unless required by Law, and prior to any release, publication or dissemination of outputs, findings or analyses derived from the Data, obtain prior written approval from the Data Provider and comply with any review or clearance processes specified by the Data Provider. Recommend explicitly state whether the synthetic dataset itself may be redistributed, deposited in repositories, or shared as supplementary material.

If applicable, include any agreed process for the publication of the Data or outputs derived from it. Alternatively, this can be subject to agreement on a case-by-case basis. Example drafting:

(i) Where the Project Details provide for the parties to carry out research activities, a party may publish the results of research completed during the Project subject to this item **Error! Reference source not found.**.

(ii) At least 30 days prior to any publication, the publishing party must provide a copy of the proposed publication to the other party.

(iii) The other party may, within 15 days of receiving notice from the publishing party of its intention to publish:

(A) provide comments and/or request amendments to the publication as reasonable to protect its Confidential Information and/or Intellectual Property Rights, which the publishing party must consider in good faith, and the publishing party must not publish the proposed publication or any amended version of the proposed publication that includes the other party's Confidential Information (including trade secrets and know-how) and/or material infringing the other party's Intellectual Property Rights without the other party's prior written consent; or

(B) request that the publishing party delay the publication for a period of not more than 90 days to allow the other party to file patent application(s) or otherwise take measures to protect its Intellectual Property Rights, in which case the publishing party must agree to delay the publication by the requested period.

(iv) If no such comments or requests for amendments or delay are provided within those 15 days, the publishing party can make the publication.

(v) All publications will recognise the contribution by the parties to the Project.

(i) **[Insert additional headings to further describe arrangements for the data]**

4.2 Data provided by Party B

[Complete the below details if Party B will provide data to Party A. Add any additional headings / description of the data as relevant to the circumstances. If Party B will not provide data to Party A, insert "N/A" and delete the below headings.]

(a) **Scope of Data**

[Describe the data to be provided by Part A, including the scope and volume of data.]

(b) **[Transfer / access] details**

(i) **[Transfer / access] method:** [e.g., secure file transfer protocol (SFTP), API, encrypted USB, cloud platform with access controls.]

(ii) **Encryption:** [Specify encryption standard for data in transit.]

(iii) **Delivery timing:** [e.g. "One-off transfer within 14 days of Commencement Date", "Monthly batch uploads by the 5th of each month", "Real-time API access".]

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(c) **Access Period**

[Insert period during which Party A may access the data, if different to the Term of this Agreement).

(d) **Permitted Purpose for use of Data by Party A**

[Insert the permitted purpose for which Party A may use the data. Consider whether all usage limitations in clause 4 of the General Terms are applicable, or if Party A is permitted to engage in any conduct that would otherwise be prohibited under that clause (e.g. linkage with other data held by Party A to enable re-identification of individuals, or other modification, analysis, synthesis, reformulation, decomposition, deconstruction, disassembly or reverse engineering of the Data).]

(e) **Data arrangements on expiry or termination (including for Personal Information)**

[Under the General Terms, unless otherwise specified, a party must, upon receipt of a written request by the other party following the expiry or termination of this Agreement, promptly (and as directed by the other party), delete the data or provide the data back to the party that originally shared the data. If different arrangements apply (e.g. the party may retain a copy of the data), specify these arrangements here.]

(f) **End User Terms**

[The parties may agree that End Users are required to sign a data use agreement before they are granted access to the Data. The data use agreement can also be used to notify End Users of their responsibilities and obligations when accessing and using synthetic health datasets. Specify here whether End Users are required to sign a data use agreement, and the form of this agreement (this should be attached to this Part A or incorporated by reference. A template data use agreement is attached to this Part A.]

[Yes, End Users are required to sign the [Data Use Agreement for End Users of Party A – Deed Poll attached as Annexure A / insert other relevant terms] prior to accessing the Data] OR [N/A].]

(g) **Pre-approved disclosure**

[Under clause 4.3 of the General Terms, the Data Requestor must not disclose or otherwise make available any part of the Data or any outputs derived from it to any third party (including any subcontractor) without the prior written authorisation of the Data Provider, unless required by Law.

Identify any pre-approved third parties to whom the Data Requestor may disclose the Data, and whether those third parties may use the Data for all Permitted Purposes or a narrower purpose.]

(h) **Pre-approved publication**

[Under clause 4.3 of the General Terms, the Data Requestor must not publish or otherwise make available any part of the Data or any outputs derived from it to any third party (including any subcontractor) without the prior written authorisation of the Data Provider, unless required by Law, and prior to any release, publication or dissemination of outputs, findings or analyses derived from the Data, obtain prior written approval from the Data Provider and comply with any review or clearance processes specified by the Data Provider. Recommend explicitly state whether the synthetic dataset itself may be redistributed, deposited in repositories, or shared as supplementary material.

If applicable, include any agreed process for the publication of the Data or outputs derived from it. Alternatively, this can be subject to agreement on a case-by-case basis. See example drafting in Party A section above].

(i) **[Insert additional headings to further describe arrangements for the data]**

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5. Additional Services Clause 3.3, General Terms

[Insert a detailed description of any additional obligations / services to be provided by a party. This could include reporting requirements, agreed sharing of certain deliverables in return for access to the Data, or other services. Include responsibilities, timing and fees payable (if applicable). Attach a detailed description in an annexure, if required].]

5.1 Party A services

[Insert, if applicable]

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5.2 Party B services

[Insert, if applicable]

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6. Privacy governance arrangements

Clause 6(b)(iii), General Terms

[Clause 6(a) of the General Terms includes a warranty that Data shared under this Agreement does not contain Personal Information. Clause 6(b) provides general steps to be taken in the event that Personal Information is inadvertently shared or re-identified. This item can be used to provide further privacy governance arrangements for additional steps to be taken by the parties in those circumstances.]

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7. Information management procedures and safeguards

Clause 7, General Terms

[Insert any specific information management procedures and safeguards required by the parties. General requirements are set out in clause 7 of the General Terms.]

(a) **Storage location**

(i) **Party A's storage of Party B's data**

[Insert location, e.g. AWS server in Sydney, Australia.]

(ii) **Party B's storage of Party A's data**

[Insert location, e.g. AWS server in Sydney, Australia.]

(b) **Security controls**

[Insert, if applicable]

(c) **Retention and deletion**

[Insert any specific retention and deletion requirements, if applicable]

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8. Intellectual Property Rights

Clause 9, General Terms

[Clause 8 of the General Terms provides that each party retains ownership of its Background Material, and the specified party (or both parties) will own the Developed Material.

A party's Background Material will generally be the Data shared by that party (if any) and any other Material made available by the party in connection with this Agreement. Refer to clause 15.1 of the General Terms for the full definition of Background Material.

Developed Material generally means all Material that is created, collected, recorded, written, developed or otherwise brought into existence by or on behalf of a party in the performance of this Agreement. Examples of Developed Material will include reports or results obtained from the use of the Data for the Permitted Purpose. Refer to clause 15.1 of the General Terms for the full definition of Developed Material.

Update this item to identify the owner of the Developed Material, and to add any additional clauses that may be required for bespoke IP arrangements.]

8.1 Owner of Developed Material

[Specify which party will own Developed Material ("Party A", "Party B" or "joint ownership by Party A and Party B"). The parties may alternatively wish to specify that each party will own specified Developed Material.]

8.2 Special conditions for Intellectual Property Rights

Further special conditions may be necessary to reflect the proposed arrangements for particular complex circumstances that depart from the standard arrangements set out in clause 8 of the General Terms (including, for example, with respect to how parties will manage use of Developed Material that is jointly owned by the parties). These conditions can be specified here, or set out in item 14 of Part A.]

8.3 (Optional) Scope of Developed Material

[As noted above, Developed Material is defined broadly. Consider specifying particular deliverables (if any) that will constitute Developed Material (e.g. "The Developed Material includes [insert particular report / outcome] developed from Party B's use of the Data").

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8.4 [Optional] Intellectual Property Rights owned by third parties

[Clause 9.1(c) of the General Terms specifies that if a party supplies to the other party any Material which incorporates Intellectual Property Rights owned by a third party, that party must procure for the other party a licence on terms equivalent to the licence granted under clause 9.1(b) of the General Terms. If Materials incorporate Intellectual Property Rights owned by a third party, consider specifying those Materials here.]

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9. Fees and payment terms

Clause 12, General Terms

[Note: If fees apply to a project, complete this section to specify the relevant fees. If no fees are payable, delete the below headings and insert "N/A" for this item 9.]

9.1 Fees payable by Party A

(a) **Fees**

[If applicable, insert Fees (including how Fees are calculated (e.g. fixed or time and materials). Specify whether fees are payable with respect to the provision of access to data, or for other services.]

(b) **Invoice payment terms**

[Insert period for payment of invoices (e.g. "Within 60 days after the date of the invoice"). If no period is specified, the default payment terms under clause 12.2(b) of the General Terms provide for payment within 30 days of the date of the invoice.]

(c) **Payment details**

[Insert payment details - e.g. By electronic funds transfer to the following account:]

Account name	[insert]
BSB	[insert]
Account number	[insert]

9.2 Fees payable by Party B

(a) **Fees**

[If applicable, insert Fees (including how Fees are calculated (e.g. fixed or time and materials). Specify whether fees are payable with respect to the provision of access to data, or for other services.]

(b) **Invoice payment terms**

[Insert period for payment of invoices (e.g. "Within 60 days after the date of the invoice"). If no period is specified, the default payment terms under clause 11.2(b) of the General Terms provide for payment within 30 days of the date of the invoice.]

(c) **Payment details**

By electronic funds transfer to the following account:

Account name	[insert]
BSB	[insert]
Account number	[insert]

---

10. Liability Cap

Clause 10, General Terms

10.1 Liability Cap for Party A

[Insert the amount of Party A's general liability cap for the purposes of clause 10 of the General Terms. This cap may be a specified amount, the Fees paid under the Agreement (or a multiple of those fees), the higher of those two amounts, or calculated in accordance with a different approach. If no liability cap is specified, Party A's liability is uncapped.

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10.2 Liability Cap for Party B

[Insert the amount of Party B's general liability cap for the purposes of clause 10 of the General Terms. This cap may be a specified amount, the Fees paid under the Agreement (or a multiple of those fees), the higher of those two amounts, or calculated in accordance with a different approach. If no liability cap is specified, Party A's liability is uncapped.

---

11. Termination for convenience Clause 11.1(b), General Terms

11.1 Is termination for convenience applicable to this Agreement?

["Yes" or "No"]

11.2 If termination for convenience is applicable:

(a) **Which party may exercise the right to terminate for convenience?**

[Either party / Party A only / Party B only]

(b) **What notice period / conditions are applicable to the right to terminate for convenience?**

[Insert notice period and/or other conditions (e.g. "By providing 90 days' written notice to the other party")]

---

12. Dispute resolution Clause 13, General Terms

[Clause 13 of the General Terms specifies that a party must not start court proceedings (other than for injunctive or other interlocutory relief) in relation to a dispute arising out of or in connection with this Agreement unless the parties have first sought to resolve the dispute in accordance with the dispute resolution process (if any) set out in the Project Details. Insert the parties' preferred dispute resolution process in this item. Example drafting is set out below.]

(a) [If a dispute between the parties arises out of or in connection with this Agreement (**Dispute**), then any party may issue a notice (**Dispute Notice**) in writing to the other parties setting out the basis of the Dispute, and within 30 Business Days after receipt of the notice, or within such other period as the parties may agree, senior representatives of each disputing party must meet and use all reasonable endeavours acting in good faith to resolve the Dispute by joint discussions.

(b) If the Dispute has not been resolved pursuant to item (a) by 30 Business Days after the date of the Dispute Notice, the parties agree to resolve the Dispute by [mediation] in [Location], administered by [Insert mediator] in accordance with the [Insert mediation].

(c) If the Dispute has not been resolved pursuant to items (a) or (b) within 60 Business Days after the date of the Dispute Notice, either party may commence court proceedings in relation to the Dispute.]

---

13. Governing law and jurisdiction Clause 14.8, General Terms

[Insert relevant State or Territory (e.g. New South Wales. This Agreement will be governed by and construed in accordance with the laws of the identified State / Territory, and the parties agree to submit to the exclusive jurisdiction of the courts and tribunals of that jurisdiction and courts entitled to hear appeals from those courts. Users of this Agreement are responsible for reviewing ensuring this Agreement is made in accordance with the laws of the specified jurisdiction.]

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14. Special conditions

[This section can be used to add additional terms to the General Terms for the purposes of the project, or to amend the General Terms. Example drafting is set out below. If no special conditions apply, delete the below content and insert "N/A"].

(a) The parties agree that the following special conditions apply:

(i) **Project governance**

[Insert reporting or meeting requirements.]

(b) The parties agree that the following sections of the General Terms are amended as follows:

(i) clause [x] ([insert clause title]) is amended and replaced by [Exhibit A to the Project Details];

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(ii) for the purposes of clause [x] (insert clause title), the parties agree [insert specific arrangements / clarifications to General Terms]; and

(iii) clause [x] is deleted and replaced by the following clause: [insert].

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15. Execution

This Agreement is entered into by Party A and Party B. The Agreement consists of Part A, Part B and any schedules or other documents attached or incorporated by reference.

Executed as an agreement.

Party A

[Party A to insert its preferred execution block. Three options have been included below.]

[Option 1 – Execution pursuant to section 127 of the *Corporations Act 2001* (Cth).]

Executed by Party A pursuant to section 127 of the *Corporations Act 2001* (Cth):

_____	_____
Signature of Director	Signature of Director/Secretary
_____	_____
Name of Director (print)	Name of Director/Secretary (print)

Date:

[End Option 1]

[Option 2 – Execution by authorised representative]

Executed by Party A by its authorised representative in the presence of:

_____	_____
Signature of witness	Signature of authorised representative
_____	_____
Name of witness	Name of authorised representative

Date:

[End Option 2]

[Option 3 – Bespoke execution clause]

[Insert Party A's preferred execution clause, if different to Option 1 and Option 2 (e.g. where signing by power of attorney]]

[End Option 3]

Party B

[Party B to insert its preferred execution block. Three options have been included below.]

[Option 1 – Execution pursuant to section 127 of the *Corporations Act 2001* (Cth).]

Executed by Party B pursuant to section 127 of the *Corporations Act 2001* (Cth):

_____	_____
Signature of Director	Signature of Director/Secretary
_____	_____
Name of Director (print)	Name of Director/Secretary (print)

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[Logo of SynD / member or collaborator of SynD using this template]

Date:

[End Option 1]

[Option 2 – Execution by authorised representative]

Executed by Party B by its authorised representative in the presence of:

_____	_____
Signature of witness	Signature of authorised representative
_____	_____
Name of witness	Name of authorised representative

Date:

[End Option 2]

[Option 3 – Bespoke execution clause]

[Insert Party B's preferred execution clause, if different to Option 1 and Option 2 (e.g. where signing by power of attorney]]

[End Option 3]

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Annexure A – [Optional] Data Use Agreement for End Users of [Party A / Party B] - Deed Poll

INSTRUCTIONS FOR USING THIS OPTIONAL DATA USE AGREEMENT

If specified in item 4 of the Project Details, this document must be signed by each of the relevant Data Requestor's End Users prior to being granted access to the Data under the Data Sharing Agreement. This document is in addition to, and not a replacement of, the General Terms in Part B. If this document will not be used, this Annexure A can be deleted.

Please refer to the Synthetic Health Data Governance Framework for more information about data use agreements.

This document has been prepared in the form of a deed poll (requiring execution only by the relevant individual / entity) and may be enforced by the Data Provider.

Data Use Agreement for End Users of [Party A / Party B] – Deed Poll

Dated [insert date]

Executed by:

End User	Name	[Insert name of End User]
	Position	[Insert role, to assist with identification of End User as personnel of Data Provider]
	Address	[Insert address for End User, or business address of Data Provider]

In favour of:

Data Provider	Name	[Insert full entity name]
	[ABN / ACN]	[Insert]
	Address	[Insert]
	Email	[Insert]

Background

(A) [The Data Provider and [insert Data Requestor name and ABN / ACN] (**Data Requestor**) have entered into a Data Sharing Agreement dated [insert] (**Data Sharing Agreement**) for the sharing of synthetic health data for certain approved purposes.

(B) The End User is authorised by the Data Requestor to access the synthetic health data to carry out activities associated with one or more of the approved purposes, and agrees to comply with the terms of this deed poll in connection with such access.]

Operative provisions

1. Definitions and interpretation

1.1 Definitions

(a) Capitalised terms used in this deed poll have the meaning given in the Data Sharing Agreement unless otherwise defined.

(b) [Optional – complete for additional terms added to this template] In this deed poll, unless the context indicates a contrary intention:

(i) **[insert term]** means [insert definition].

1.2 Interpretation

(a) Unless the contrary intention appears:

(i) a reference in this deed poll to a document (including this deed poll) includes any variation or replacement of it;

(ii) a reference in this deed poll to a clause, is a reference to a clause in this deed poll;

(iii) the meaning of general words is not limited by specific examples introduced by 'including' or similar expressions; and

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(iv) where a word or phrase is defined in this deed poll, other parts of speech and grammatical forms of that word or phrase have corresponding meanings.

2. Undertakings

[This section of the deed poll should be reviewed and updated to reflect the agreed data use terms in the Data Sharing Agreement. Template drafting has been included below. The parties may wish to include, for example, specific data use protocols relevant to the parties' data sharing arrangements that the End User must comply with.]

I, the End User, having referred to the Data Sharing Agreement, acknowledge and undertake to the Data Provider that I will:

(a) **(Permitted Use)** handle the Data solely for the Approved Purpose and only during the Access Period;

(b) **(prohibition on re-identification)** not attempt to re-identify any individual from the Data or link it to any other datasets for identification purposes and prohibit inference attacks and model inversion;

(c) **(confidentiality)** keep the Data strictly confidential and not disclose it to any unauthorised person;

(d) **(security compliance)** comply with all information security policies and procedures applicable to handling the Data, including using only authorised devices and secure connections, and not sharing my access credentials with any other person;

(e) **(legal and ethical compliance)** comply with all applicable privacy laws, guidelines and data protection requirements (including [insert relevant requirements, if applicable]) in connection with my handling of the Data;

(f) **(publication and outputs)** before publishing or releasing any outputs, analyses or results derived from the Data:

(i) obtain prior approval from [insert designated person/role]; and

(ii) ensure any publication is otherwise carried out in accordance with the Data Sharing Agreement;

(g) **(data return or destruction)** upon termination or expiry of the Access Period, or as otherwise directed by the Data Requestor or Data Provider, delete or return all Data in my possession or control (as directed by the Data Requestor or Data Provider);

(h) **(incident reporting)** immediately report to the appropriate contact at the Data Requestor any actual, anticipated or attempted:

(i) breach or suspected breach of security;

(ii) unauthorised access to or disclosure of the Data;

(iii) incident that may compromise the confidentiality or integrity of the Data; or

(iv) suspected re-identification of any individual.

3. Consequences of breach

I understand that any breach of this Deed Poll may result in immediate revocation of access to the Data, and that the Data Provider may enforce the terms of this deed poll directly against me.

4. Survival of obligations

I acknowledge that my obligations of confidentiality, data return or destruction, and incident reporting survive the termination or expiry of my access to the Data.

5. General

5.1 Further assurance

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The End User must, at their own expense and within a reasonable time of being requested by the Data Provider to do so, do all things and execute all documents that are reasonably necessary to give full effect to this Deed Poll.

5.2 Governing law

This deed poll is governed by the laws of [insert].

5.3 No amendment

This deed poll may only be amended in writing signed by the Data Provider and the End User.

5.4 Counterparts

This deed may consist of a number of signed counterparts. All counterparts together constitute one document.

[Option 1 – Executed by an individual]

Executed as a deed poll in favour of the Data Provider

By entering this deed poll, the End User acknowledges that they have had the opportunity to seek legal advice and understands the terms of this deed poll are legally binding.

Signed, sealed and delivered by the **End User** in the presence of:

_____	_____
Signature of End User	Signature of Witness
_____	_____
Name of End User (print)	Name of Witness (print)

Date:

[End Option 1]

[Option 2 – Executed by a company]

[In some circumstances, it may be appropriate for this deed poll to be executed by a company (e.g. by subcontractors engaged by the Data Requestor). If this is the case, the deed poll should be updated to include a requirement that the subcontractor will ensure that its own personnel comply with the terms of the deed poll.]

Executed as a deed poll in favour of the Data Provider

Signed, sealed and delivered by the **End User** pursuant to Section 127 of the *Corporations Act 2001* (Cth):	)))
_____	_____
Signature of Director	Signature of Director/Secretary
_____	_____
Name of Director (print)	Name of Director/Secretary (print)

Date:

[End Option 2]

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[Annexure B – [Optional – placeholder for further attachments]

[This is a placeholder for any further documents to be attached as annexures to Part A (e.g. a detailed description of services to be provided by a party as set out in a project plan, or a policy setting out minimum information security requirements). If no documents are to be attached, delete this placeholder.]

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PART B: GENERAL TERMS

1. Structure of Agreement

(a) The Agreement comprises:

(i) the Project Details (excluding any document which the Project Details states will form part of the Agreement or is otherwise expressly incorporated by reference);

(ii) any document which the Project Details states will form part of the Agreement or is otherwise expressly incorporated by reference; and

(iii) these General Terms.

(b) Unless otherwise specified in this Agreement, to the extent of any inconsistency between the various parts of this Agreement, the documents will prevail in the order set out in clause 1(a) (from highest to lowest priority).

(c) Capitalised terms used in these General Terms have the meaning given to them in the Project Details or in clause 15.1.

2. Term

This Agreement commences on the Commencement Date and continues for the Initial Term, unless extended in accordance with the Extension Mechanism, or terminated earlier in accordance with clause 11.

3. Conduct of the Project

3.1 General

Each party agrees to carry out its obligations under this Agreement:

(a) in a professional manner and with reasonable care and skill;

(b) with all the relevant licences, approvals, permits, certifications, consents, qualifications and authorisations required; and

(c) in compliance with applicable Laws.

3.2 Provision of data

The Data Provider will provide the Data to the Data Requestor during the Access Period in the manner specified in the Project Details.

3.3 Additional Services

If the Project Details specifies that a party will provide Additional Services, the party will provide the Additional Services in the manner specified in the Project Details.

4. Data handling

4.1 General obligations

The Data Requestor must:

(a) Handle the Data:

(i) only for the Permitted Purpose and during the Access Period;

(ii) in compliance with applicable Laws, the Data Provider's reasonable directions, and this Agreement; and

(b) not perform any modification, analysis, synthesis, reformulation, decomposition, deconstruction, disassembly or reverse engineering of the Data, or attempt to re-identify, link or otherwise associate the Data with any individual, whether directly or indirectly, except as may be expressly described in the Project Details and at all times for the Permitted Purpose.

4.2 End Users

(a) If specified in the Project Details, the Data Requestor must ensure that any of its Personnel who are authorised to Handle the Data on behalf of the Data Requestor (each an **End User**) signs the End User Terms prior to that End User Handling the Data.

(b) The Data Requestor must provide a copy of the signed End User Terms to the Data Provider on request.

(c) The Data Requestor will be responsible for any breach of this Agreement by any End User as if the breach had been committed by the Data Requestor itself.

4.3 Publication and disclosure

Without limiting clause 5, and except as otherwise provided in the Project Details, the Data Requestor must:

(a) not disclose, publish or otherwise make available any part of the Data or any outputs derived from it to any third party (including any subcontractor) without the prior written authorisation of the Data Provider, unless required by Law; and

(b) prior to any release, publication or dissemination of outputs, findings or analyses derived from the Data, obtain prior written approval from the Data Provider and comply with any review or clearance processes specified by the Data Provider.

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4.4 Return or destruction of Data

Unless otherwise specified in this Agreement, the Data Requestor must, upon receipt of a written request by the Data Provider following the expiry or termination of this Agreement, promptly (and as directed by the Data Provider):

(a) deliver all of the Data in the Data Requestor's possession or control to the Data Provider in the format reasonably required by the Data Provider; or

(b) destroy all of the Data in the Data Requestor's possession or control (and certify the destruction to the Data Provider in writing).

---

5. Confidentiality

5.1 General

(a) The parties wish to exchange Confidential Information for the Permitted Purpose. In consideration for the mutual undertakings contained in this Agreement, each party has agreed to disclose Confidential Information to the other party on the terms and conditions set out in this Agreement.

(b) Subject to clause 5.2, a party (**Receiving Party**) must not use or disclose, or permit any person to use or disclose, any Confidential Information of the other party (**Disclosing Party**) for a purpose other than as contemplated or permitted under this Agreement.

5.2 Disclosure exceptions

A Receiving Party may disclose any Confidential Information of the Disclosing Party:

(a) to officers, employees, consultants and advisers of the Receiving Party (or its Related Bodies Corporate) who have a need to know (and only to the extent that each has a need to know) and are under a contractual obligation to maintain the confidentiality of the Confidential Information;

(b) which is required to be disclosed by Law or by any notice, order or regulation of any Regulatory Authority (including any rules of a securities exchange) that is binding on the Receiving Party or its Related Body Corporate (whether or not that requirement arises as a result of actions by the Receiving Party or its Related Body Corporate);

(c) to prosecute or defend any legal proceedings, or to otherwise enforce or protect the Receiving Party's lawful rights and interests, arising out of or in connection with this Agreement; or

(d) with the prior written consent of the other party.

5.3 Disclosure required by Law

Where a Receiving Party is required to make a disclosure under clause 5.2(b), it must:

(a) disclose the minimum amount of information required to satisfy the Law or any notice, order or regulation of any Regulatory Authority (including any rules of a securities exchange);

(b) to the extent reasonably practicable and permitted by Law, before disclosing any information, give reasonable notice to the Disclosing Party and take all reasonable steps to maintain that information in confidence and invite the other party to comment on the disclosure being made;

(c) where appropriate, give due regard to the comments of the other party; and

(d) in the case it is not reasonably practicable or lawful for the Recipient to give prior notice to the Disclosing Party under clause 5.3(b), the Recipient must, as soon as reasonably practicable and to the extent permitted by Law or by any notice, order or regulation of any Regulatory Authority (including any rules of a securities exchange), notify the Disclosing Party after the disclosure is made giving reasonable details of the circumstances of the disclosure and the relevant Confidential Information disclosed.

5.4 Announcements

A party must not make any press release or other public announcement relating to this Agreement (including the fact that the parties have entered this Agreement) unless:

(a) the other party has consented to the announcement, including the form and content of that disclosure; or

(b) the announcement would be permitted under clause 5.2(b).

---

6. Privacy

(a) The Data Provider warrants that any Data shared with the Data Requestor under this Agreement does not contain Personal Information.

(b) If the Data Requestor identifies that any Data received from the Data Provider contains Personal Information, or may be combined,

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linked or otherwise associated with any other information held by the Data Requestor in a manner such that it constitutes Personal Information, the Data Requestor must:

(i) promptly notify the Data Provider in writing;

(ii) unless otherwise specified in this Agreement when requested by the Data Provider and at the option of the Data Provider, either:

(A) return to the Data Provider copies of such Personal Information held by the Data Requestor and its Personnel in connection with this Agreement; or

(B) permanently destroy or de-identify such Personal Information and certify that this has been done in writing to the Data Provider; and

(iii) comply with any other privacy governance obligations as specified in the Project Details.

7. Information Security

Each party must:

(a) comply with the information management procedures and safeguards specified or referred to in the Project Details;

(b) without limiting clause 7(a), maintain and enforce security procedures and safeguards (including safeguards against the access to, and destruction, loss, disclosure, alteration or unauthorised use of, the other party's Data) in accordance with the security standards and practice of that party;

(c) notify the other party immediately upon:

(i) receiving an access, correction or other request, or any other claim, complaint or allegation, from a third party relating to the other party's Data;

(ii) becoming aware of any actual, anticipated or attempted unauthorised or unlawful access, modification or disclosure of, or misuse, destruction, interference or loss of, the other party's Data in that party's possession or control (including any actual, anticipated or attempted unauthorised access to a party's information technology system containing the other party's Data); or

(iii) becoming aware of any incident which has occurred, is occurring or is imminent and that has had, is having or is likely to have an impact on the confidentiality of information about the other party; and

(d) cooperate with the other party in handling an event in clause 7(c) and provide reasonable assistance to the other party in the discharging of the other party's duties under Laws.

8. Breach of Obligations

Each party acknowledges that:

(a) any breach of clauses 4, 5, 6 or 7 of this Agreement may cause harm to the other party for which monetary damages would not be a sufficient remedy; and

(b) the other party is entitled to specific performance or injunctive relief (as appropriate) as a remedy for any breach or threatened breach of this Agreement by the first party, in addition to any other remedies available to the other party at law or in equity.

9. Intellectual Property

9.1 Background Material

(a) All Intellectual Property Rights in a party's Background Material remain vested in that party.

(b) Each party grants to the other party a non-exclusive, royalty-free, irrevocable and non-transferable licence during the Term to exploit the Intellectual Property Rights in relevant Background Material to the extent required to carry out the Project.

(c) If a party supplies to the other party any Material which incorporates Intellectual Property Rights owned by a third party, that party must procure for the other party a licence on terms equivalent to the licence granted under clause 9.1(b).

9.2 Developed Material

(a) The party specified in the Project Details as the owner of the Developed Material (**Developed Material Owner**) will own all rights (including Intellectual Property Rights), title and interest in and to any Developed Material immediately from creation (including part creation).

(b) For the avoidance of doubt, the Project Details may specify that:

(i) Party A or Party B is the Developed Material Owner for all Developed Material;

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(ii) the parties jointly own the Developed Material; or

(iii) each party owns certain Developed Material.

(c) Except to the extent the parties jointly own the Developed Material, the Developed Material Owner grants to the other party a non-exclusive, royalty-free and non-transferable licence to use, reproduce, modify, adapt and further develop the Developed Material during the Term to the extent required for that party to carry out the Project.

(d) On request by the Developed Materials Owner, the other party must provide the Developed Material Owner with a copy of any Developed Material in its possession.

9.3 Moral Rights

To the extent permitted by law, each party must procure from personnel who are authors of or otherwise involved in the creation or production of any Developed Material all necessary consents and waivers in writing authorising the other party to do any act or omit to act in any way that would otherwise infringe that person's Moral Rights.

9.4 Intellectual property warranties

Each party warrants that:

(a) it is able to license and assign the Intellectual Property Rights as required by this clause 9; and

(b) the performance or use of any of that party's Material in accordance with this Agreement will not infringe any third party rights, including Intellectual Property Rights or Moral Rights, or result in any liability for the other party to pay any third party any licence or other fee in respect of the use.

9.5 Replacement

Without limiting the other party's rights under this Agreement, if a party becomes aware that there is, or is likely to be, an infringement of any Intellectual Property Rights of any person in connection with Material provided by that party in connection with this Agreement, that party must, at the other party's discretion and election in writing:

(a) promptly replace or modify the relevant Material, or the affected part, to overcome the infringement; or

(b) secure the right for the other party to continue to use the relevant part of the Material,

at no cost to the other party, such that the quality, performance or usefulness of the Material for the purposes of the Project is not degraded and the infringement or alleged infringement ceases.

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10. Liability

10.1 Limitation of liability

Subject to clause 10.2 and to the fullest extent permitted by law, the maximum aggregate liability either party under this Agreement for Loss sustained by the other party in connection with this Agreement, whether in contract (including indemnity), tort or otherwise, is limited to the relevant party's Liability Cap, provided that the foregoing shall not limit a party's liability for damages arising from:

(a) its fraud, negligence or wilful misconduct; or

(b) a breach of clauses 5 or 6(a).

10.2 No consequential loss

Neither party shall be liable to the other party under this Agreement for any special, indirect, incidental, punitive or consequential damages, including lost profits, revenues, anticipated savings, opportunity, business, or goodwill, whether in contract, warranty, negligence, tort, strict liability or otherwise, even if such party has been advised of the possibility thereof.

---

11. Termination

11.1 General

(a) A party may terminate this Agreement immediately by written notice if:

(i) the other party (**defaulting party**) breaches a material term of this Agreement and either:

(A) the breach is not capable of remedy; or

(B) the defaulting party fails to remedy that breach within 20 Business Days after receipt of a notice specifying the details of the breach and requiring it to be remedied; or

(ii) the other party is affected by an Insolvency Event.

(b) Where the Project Details specify that termination for convenience applies, the party identified in the Project Details as having such right may terminate this Agreement for convenience by providing written notice to the other party, subject to any notice period or other conditions specified in the Project Details.

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11.2 Effect of termination

Termination will not affect any rights of a party which accrued prior to termination.

11.3 Survival

Notwithstanding termination of this Agreement, clauses 4, 5, 6(a), 7, 11.2, 11.3, 13, 14 and any other provisions of this Agreement which are expressed to continue in force after termination or which by necessary implication must continue after termination will survive.

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12. Fees and payment

12.1 This clause 12 applies only if the Project Details specifies that a Fee is payable by a party (**Payor**) to the other party (**Payee**) in connection with the Project.

12.2 Invoices and payment terms

Unless otherwise agreed in writing:

(a) the Payee may invoice the Payor for Fees as set out in the Project Details (or if no timing for invoicing is specified, after the relevant service to which the Fee relates has been provided);

(b) all invoices are payable by the Payor within the period specified in the Project Details (or if no period is specified, within 30 days of the date of the invoice);

(c) all sums payable by the Payor under this Agreement must be paid by electronic funds transfer to the account specified in the Project Details, or by such other payment arrangement as may be specified in the Project Details;

(d) all sums due under the Agreement are exclusive of any applicable taxes;

(e) any bank fees in connection with payments made under this Agreement will be borne by the Payor; and

(f) all amounts are in AUD. There will be no adjustment to the Fees made in regard to foreign exchange.

12.3 GST

(a) Unless the context requires otherwise, words and expressions that have a defined meaning in GST Law will have the same meaning when used in this clause 12.3.

(b) Unless otherwise expressly stated, all amounts payable under this Agreement are expressed to be exclusive of GST.

(c) If GST is payable on a supply made under or in connection with this Agreement, for which the consideration is not expressly stated to be GST inclusive, the party providing the consideration for that supply must pay to the supplier as additional consideration an amount equal to the amount of GST payable on that supply (the **GST Amount**).

(d) The GST Amount is payable at the same time that the other consideration for the supply is provided, except that the GST Amount need not be paid until the supplier gives a tax invoice to the recipient of the supply.

(e) Where any indemnity, reimbursement or similar payment under this Agreement is based on any cost, expense or other liability incurred, it will be reduced by an amount equal to any input tax credit entitlement which the party being reimbursed or indemnified is entitled to in relation to the relevant cost, expense or other liability.

(f) Whenever an adjustment event occurs in relation to any supply made under or in connection with this Agreement, the GST Amount will be recalculated to reflect that adjustment and the amount of the difference from the GST Amount must be paid by, refunded to or credited to the recipient of the supply, as applicable.

(g) This clause 12.3 survives the termination of this Agreement.

12.4 Other taxes

(a) The Payor will pay, and is responsible for, all taxes levied, imposed, collected, withheld, assessed or charged in respect of this Agreement, the payment(s) made under the Agreement, and the entering into and undertaking of the transaction(s) contemplated or attributable to this Agreement.

(b) If the Payor is required to make any deduction or withholding for or in respect of any taxes in connection with this Agreement, the Payor may withhold the relevant amount from the payment due to the Payee and will promptly pay that amount to the relevant authority. The Payor will have no obligation to pay an additional amount to the Payee in relation to the withheld amount. If this clause 12.4 applies, the Payor will, upon the Payee's written request, provide the Payee with all reasonable documentation so that the Payee can establish that the Payor has paid the withheld amount to the relevant authority.

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12.5 Payment disputes

The Payor may withhold a payment if it disputes an amount in an invoice. If this occurs:

(a) the Payor will notify the other party of the disputed amount by the invoice due date;

(b) the Payor must pay the Payee the portion of the invoiced amounts not in dispute;

(c) the Payee must continue to perform its obligations under this Agreement while the dispute is being resolved; and

(d) appropriate Personnel from both parties with authority to resolve the dispute must meet within 30 days of the date of the Payor's notice (or such longer period agreed by the parties) and make a bona fide attempt to settle the disputed amount, failing which the dispute may be referred to the dispute resolution process set out in clause 13.

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13. Disputes

A party must not start court proceedings (other than for injunctive or other interlocutory relief) in relation to a dispute arising out of or in connection with this Agreement unless the parties have first sought to resolve the dispute in accordance with the dispute resolution process (if any) set out in the Project Details.

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14. General

14.1 Amendments

This Agreement may only be amended by written agreement between the parties.

14.2 Assignment

This Agreement may not be assigned by any party other than as set out in this Agreement.

14.3 Counterparts

This Agreement may be signed in any number of counterparts. All counterparts together make one instrument.

14.4 Entire agreement

The Agreement supersedes all prior agreements, arrangements and undertakings between the parties and constitutes the entire agreement between the parties relating to its subject matter. No addition to or modification of any provision of the Agreement will be binding upon the parties unless in writing signed by the parties.

14.5 Exclusivity

This Agreement is a non-exclusive arrangement and the parties may enter into similar agreements with other parties.

14.6 Force Majeure

(a) If a Force Majeure Event gives rise to a failure or delay in either party performing any obligation under the Agreement (other than any obligation to make a payment), that obligation will be suspended for the duration of the Force Majeure Event, provided that the affected party:

(i) promptly notifies the other party, including the period for which it is estimated that such failure or delay will continue; and

(ii) takes reasonable steps to mitigate the effects of the Force Majeure Event.

(b) If a party's ability to perform its obligations under this Agreement is delayed or prevented, in whole or in part, for a period of 90 consecutive days as a result of a Force Majeure Event, then the other party shall have the right to terminate this Agreement (in whole or in part) with immediate effect without further obligation or liability to the other party.

14.7 Further assurances

Each party must do all things reasonably necessary to give effect to the arrangements recorded in this Agreement.

14.8 Governing law and jurisdiction

The Agreement will be governed by and construed in accordance with the laws for the time being in force in the location specified in the Project Details (**Governing Law Location**). The parties agree to submit to the exclusive jurisdiction of the courts and tribunals of that jurisdiction and courts entitled to hear appeals from those courts.

14.9 No representation or reliance

Each party acknowledges and confirms that it does not enter into this Agreement in reliance on any representation or other inducement by or on behalf of any other party, except for any representation or inducement expressly set out in this Agreement.

14.10 Notices

All notices given under this Agreement must be in writing and delivered by courier, email or registered mail (postage pre-paid) to the other party at its address. A notice will be effective: (i) upon receipt or 5 days after being posted in the mail, whichever occurs earlier, (ii) if delivered by

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email, upon receipt of the email. A party's address for notices is as set out in the parties' details in this Agreement, or otherwise as notified by notice by a party to the other from time to time.

14.11 Severability

If any part of the Agreement is or becomes illegal or unenforceable, that part will be severed from the Agreement and such invalidity will not affect the validity of the remaining provisions of the Agreement.

14.12 No Relationship

Nothing in this Agreement is to be treated as creating a partnership, joint venture or relationship of employer and employee between the parties under the laws of any jurisdiction. Except as specifically provided for in this Agreement, no party is intended to act as agent of the other or be authorised in any way to bind or to commit the other party to any obligation.

14.13 Waiver

No forbearance, delay or indulgence by a party in enforcing the provisions of the Agreement will prejudice or restrict the rights of that party, nor will any waiver of those rights operate as a waiver of any subsequent breach.

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15. Definitions and interpretation

15.1 Definitions

The following definitions apply unless the context requires otherwise.

Access Period means the Term, or such other period as specified in item 4 of the Project Details.

Additional Services means the services specified in item 5 of the Project Details (if any).

Agreement means this agreement as described in clause 1.

Background Material means all Material independently created by a party (or licensed to the party by a third party) (including, for the Data Provider, the Data) which:

(a) is in existence before the date of this Agreement, or which comes into existence after the date of this Agreement other than in connection with this Agreement, and includes any enhancements and modifications thereto; and

(b) the party makes available, contributes, brings to or uses in connection with this Agreement,

but excludes the Developed Material.

Business Day means:

(a) in relation to any notice given under this Agreement, a day that is not a Saturday, Sunday or public holiday in the place of receipt; and

(b) in all other cases, a day that is not a Saturday, Sunday or public holiday in the Governing Law Location.

Commencement Date means the commencement date specified in the Project Details.

Confidential Information means any and all information, regardless of its form, disclosed by a Disclosing Party or its representatives to the Receiving Party or its representatives under this Agreement or in connection with the subject matter of this Agreement (whether communicated orally, electronically, in writing or otherwise) which is confidential to the Disclosing Party or which the Receiving Party ought to reasonably know is confidential, including without limitation concepts, inventions (whether or not patentable), works of authorship, trade secrets, know-how, technical information methods, proprietary information, designs, data, market information and all intellectual property, but excluding information:

(a) the Receiving Party creates (whether alone or jointly with a third party) independently of the Disclosing Party's Confidential Information, and this can be proven by written record;

(b) that is in or comes into the public domain (other than as a result of a breach of confidentiality by the Receiving Party or any of its permitted disclosees);

(c) is lawfully acquired or obtained without restrictions on disclosure and this can be proven by written record; or

(d) is already in possession of the Receiving Party prior to the execution of this Agreement and this can be proven by written record.

Corporations Act means the *Corporations Act 2001* (Cth).

Data means the data specified in item 4 of the Project Details.

Data Provider means the party specified in the Project Details as the party responsible for providing Data to the Data Requestor.

Data Requestor means the party specified in the Project Details as the recipient of Data from the Data Provider.

Developed Material means all Material that is created, collected, recorded, written, developed or otherwise brought into existence by or on behalf of

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a party in the performance of this Agreement, and includes Material that is:

(a) based on or derived from a party's Background Material; or

(b) otherwise agreed in writing by the parties (including in the Project Details) to be Developed Material,

but not including a party's Background Material.

Developed Material Owner has the meaning set out in clause 9.2.

Disclosing Party has the meaning set out in clause 5.

End Date means the end date specified in the Project Details.

End User has the meaning given in clause 4.2.

End User Terms means the data use agreement (if any) specified in item 4 of the Project Details.

Extension Mechanism means the process for extending the Term of the Agreement specified in item 3.3 of the Project Details (if any).

Extension Period means the period for which the Term of the Agreement is extended in accordance with the Extension Mechanism (if any).

Fee means the fee specified in the Project Details (if any).

Force Majeure Event means to the extent beyond the control and without the fault or negligence of the party affected: a civil commotion or riot, natural disaster, lightning, fire, earthquake, storm, flood, drought, disease, epidemic, pandemic, explosion, industrial action, currency restriction, embargo, action or inaction by a government, or act of terror; provided, however, that a delay or failure to perform caused by a third party suppler or subcontractor is not a Force Majeure Event, unless the delay or failure to perform is due to a Force Majeure Event.

GST Law means the *A New Tax System (Goods and Services Tax) Act 1999* (Cth) (as amended from time to time).

Handle or **Handling** means to collect, use, disclose, store, retain and/or dispose of.

Initial Term means the period commencing on the Commencement Date and expiring on the End Date.

Insolvency Event means the occurrence of any one or more of the following events:

(a) a party becomes insolvent or is subject to an order or a resolution for its liquidation, administration, winding-up or dissolution (other than a solvent amalgamation or reconstruction or otherwise in circumstances which are approved by the other party);

(b) a party ceases or threatens to cease to carry on business, has a receiver, liquidator, administrator or similar officer appointed over all or any part of its assets or undertaking, enters into or proposes any composition or arrangement with its creditors or takes or suffers any similar action in consequence of a debt or other liability or is deregistered;

(c) a party is taken to have failed to comply with a statutory demand at the end of a relevant period as a result of section 459F(1) of the Corporations Act;

(d) a notice is issued under sections 601AA or 601AB of the Corporations Act in respect of a party;

(e) a writ of execution is levied against a party or its property; or

(f) a party suffers any event analogous to the events described in (i) to (v) in any jurisdiction.

Intellectual Property Rights includes all present and future rights in relation to copyright, trade marks, designs, patents or other proprietary rights, or any rights to registration of such rights, whether created before or after the date of this Agreement and whether existing in Australia or elsewhere.

Law means:

(a) all laws including rules of common law and equity, statutes, regulations, determinations, by-laws, ministerial directions, subordinate legislation, ordinances, mandatory codes, standards and guidelines, writs, orders, injunctions and judgments; and

(b) any Regulatory Authority requirement or authorisation (including conditions in respect of any authorisation).

Liability Cap means the liability cap specified in the Project Details. If no liability cap is specified in the Project Details, the Liability Cap is uncapped.

Loss means any loss, damage, liability, charge, outgoing, cost or expense (including reasonable legal costs and expenses).

Material means tangible and intangible information, documents, reports, inventions, data and other materials in any media or form whatsoever.

Moral Rights means the rights conferred by Part IX of the *Copyright Act 1968* (Cth), and any similar rights existing or that may come to exist anywhere in the world, including a right of attribution of

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authorship, a right not to have authorship falsely attributed, and a right of integrity.

Payee has the meaning set out in clause 12.

Payor has the meaning set out in clause 12.

Permitted Purpose has the meaning given in the Project Details. If no Permitted Purpose is specified in the Project Details, the Permitted Purpose is limited to the relevant party's internal activities as necessary for the performance of the Project.

Personal Information means all 'personal data' or 'personal information' or equivalent terms as defined in Privacy Laws, that a party collects, accesses, generates or otherwise handles in connection with this Agreement.

Personnel means directors, employees, agents, contractors or subcontractors of a party (excluding the other party).

Privacy Laws means the *Privacy Act 1988* (Cth) and all data protection and privacy laws applicable to the respective party.

Project means the project described in the Project Details.

Project Details means Part A of this Agreement.

Receiving Party has the meaning set out in clause 5.

Regulatory Authority means any government or governmental, semi-governmental, administrative, fiscal, regulatory or judicial entity, commission, tribunal, agency or authority or any minister, department, office or delegate of any government.

Related Body Corporate has the meaning given to that term in section 50 of the Corporations Act.

Services mean the services to be supplied a party during the Term, as described in the Project Details.

Term means the Initial Term and any Extension Period.

15.2 Interpretation

In this Agreement, unless the context requires otherwise:

(a) the singular includes the plural and vice versa;

(b) other grammatical forms of defined words or expressions have corresponding meanings;

(c) headings and sub-headings are used for convenience only and do not affect the interpretation of this Agreement;

(d) no provision of this Agreement may be construed adversely to a party solely on the ground that the party was responsible for the preparation of this Agreement;

(e) wherever "include", "for example", or any form of those words or similar expression is used, it means including without limitation

(f) a reference to a clause, schedule or annexure is a reference to a clause, schedule or annexure in this Agreement;

(g) a reference to a document includes the document as modified, extended or supplemented from time to time and any document replacing, novating or restating it;

(h) a reference to a party is to a party to this Agreement and a reference to a party to a document includes the party's executors, administrators, successors and permitted assigns and substitutes (including by novation);

(i) if something is to be or may be done on a day that is not a Business Day then it must be done on the next Business Day;

(j) "person" includes a natural person, partnership, body corporate, association, governmental or other authority and any body or entity whether incorporated or not;

(k) "month" means calendar month and "year" means 12 months;

(l) if a period of time is specified and dates from a given day or the day of an act or event, it will be calculated exclusive of that day;

(m) a reference to $ or dollars is to Australian dollars, unless otherwise expressly specified;

(n) any agreement, representation, warranty or indemnity in favour of two or more parties (whether those parties are included in the same defined term or not) is for the benefit of them jointly and severally; and

(o) any agreement, representation, warranty or indemnity by two or more parties (whether those parties are included in the same defined term or not) binds them jointly and severally.

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